CODE 10 — HABITAT AND TERRITORY

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Art. 1 — Subject matter, definitions and legal nature

1. This Code governs:

   a) the intended use of land;

   b) land take;

   c) the regeneration of habitats;

   d) the protection of ecological corridors;

   e) the establishment of buffer zones for pollination and health;

   f) the federated Land Register;

   g) the georeferencing of common infrastructure;

   h) the subsoil, deposits and the inventory of recoverable materials.

2. For the purposes of this Code:

   a) **habitat:** means the set of territorial components and functions, including fertile land, built-up land, degraded land, agricultural land that is temporarily not fertile, semi-natural areas, ecological corridors, buffer zones, wetlands, proximity woodlands and territorial infrastructure for the catchment and storage of agricultural water;

   b) **gross land take:** means the occupation of fertile land through building or infrastructural transformation or through soil sealing, irrespective of any compensation;

   c) **net land take:** means gross land take net of the areas regenerated and restored to an equivalent fertile functionality in the same territorial Basin and in the reference period. The equivalence and the period are defined by the Regeneration STV provided for by Article 5, paragraph 3. The period is, as a rule, annual;

   d) **irreversible occupation:** means a transformation of land that entails permanent sealing, removal of the fertile layer or a loss of functionality that cannot be restored without a structural regeneration intervention;

   e) **reversible occupation:** means a temporary use of land that preserves the fertile layer in full and allows the complete restoration of the functionality defined by the Regeneration STV within twenty-four months. If restoration does not take place within that time limit, the occupation shall be classified as gross land take with effect from the initial date of the occupation;

   f) **mineral resources:** means metals, minerals and rocks in their natural state, underground or outcropping, and those contained in landfills and in waste deposits from past extraction, until they are recovered; they do not include water, which is governed by Code 8;

   g) **deposit:** means a concentration of mineral resources that has been ascertained and entered in the Land Register.

3. The following are inalienable infrastructural commons:

   a) the fertile land pertaining to Circle 1;

   b) the federated ecological corridors;

   c) the federated Land Register;

   d) the buffer zones for pollination and health;

   e) the semi-natural territorial bank;

   f) the subsoil and mineral resources. This qualification does not restrict the meaning of the words “land” and “soil” used by the Constitution.

4. The territorial classification of land is determined on the basis of its ecological and territorial function, as recorded in the federated Land Register. It does not depend on the previous use of the land or on any claims of individual ownership.
5. Classification as fertile, agricultural, semi-natural, degraded or temporarily non-fertile land, corridor, buffer zone or built-up area does not, by itself, determine any classification as to ownership.
6. The classification of agricultural land as temporarily not fertile is permitted only where there is a reasoned technical record by the Agroecological Council, with the mandatory opinion of the Habitat and Territory Council. The record shall indicate the causes, the plan for restoring fertility and the time limit for review, which shall not exceed twelve months and may be extended once only.
7. Until the positive outcome of the review and a subsequent resolution on the intended use, the presumption of agricultural use shall persist and transformation to building use is prohibited.

Art. 2 — Principles

1. **Objective of zero net land take.** Net take of fertile land is prohibited. Every irreversible occupation of fertile land shall be compensated in the same territorial Basin by an equivalent regeneration, in accordance with Article 4, paragraph 4, and the Regeneration STV. The rules on gross land take are established by Article 5, paragraph 1.
2. **Priority of regeneration.** Reuse, recovery, ecological densification and de-sealing have priority over any new building.
3. **Federated ecological connection.** Every Circle 1 shall guarantee at least one functional ecological connection to the federated network, consisting of one or more ecological corridors. Width, continuity, vegetation cover and functionality are defined by the Habitat STV.
4. **Buffer zone for pollination.** A territorial buffer zone shall be established around the pollinator refuges provided for by Article 6-bis of Code 9. Within it, the prohibitions of treatment provided for by Code 9, Article 2, paragraph 4, letter b), and the prohibitions provided for by Article 6-bis, paragraph 5, letter c), of the same Code shall apply.
5. The territorial prohibitions shall apply even where a treatment is otherwise contemplated by an STV, except for the derogations expressly provided for by Code 9 and by this Article.
6. A derogation from the prohibitions in the buffer zone is permitted only in the following cases:

    a) plant health emergency provided for by Code 9, Article 2, paragraph 4, letter d);

    b) rescue intervention on colonies provided for by Code 9, Article 6-bis, paragraph 5.

The derogation shall be resolved by the Assembly on a proposal from the Agroecological Council, after agreement with the Habitat and Territory Council and after obtaining the mandatory opinion of the Biodiversity Council. The decision shall indicate the duration, the tracking, the Exit Plan and the manner of recording in the node of the Federated Agroecological Network.

7. **Territorial transparency.** Territorial information shall be managed in accordance with the access levels of Article 7 and with Code 7, Article 2.2.
8. **Reversibility.** Every territorial intervention shall include a plan for reversibility and restoration of fertility, proportionate to the nature of the intervention.

Art. 3 — Habitat and Territory Council

1. Every Circle 1 shall establish the Habitat and Territory Council, composed of three to five members with L2 or L3 competences in pedology, ecology, ecological urban planning, cartography or regeneration.
2. The members shall be drawn by lot in accordance with Article 12-bis of Code 3, shall remain in office for one year and may not be drawn by lot again for the same Council until twelve months have elapsed from the end of their term of office.

3. The Habitat and Territory Council shall:

    a) draft and update the territorial map and the Land Register;

    b) verify land take and the actual implementation of compensations;

    c) define ecological corridors and buffer zones;

    d) attend to the georeferencing of the pollinator refuges, the fields of the Basket, the seed banks and the agricultural water infrastructure provided for by Codes 8 and 9;

    e) propose and update the Habitat, Soil Regeneration and Corridors STVs;

    f) feed the Dependency Register of Code 15 for the territorial dependencies referred to in Article 8, paragraph 5;

    g) coordinate its activity with the Energy and Water Council of Code 8, the Agroecological Council of Code 9, the Biodiversity Council of Code 13 and the Production Council of C.1-Annex A;

    h) keep the inventory of recoverable materials provided for by Article 8-bis.

4. The acts of the Council are divided into:

    a) bound technical acts, adopted in execution of an STV in force;

    b) discretionary proposals and decisions, adopted in accordance with the consensus method provided for by Code 3, after publication for at least seventy-two hours.

5. The opinions of the other Councils are mandatory where this Code so provides. The mandatory opinion does not transfer to the Council consulted the deliberative or technical competence over the act, except in the cases of joint validation or binding opinion expressly provided for.

6. In the event of conflict between opinions, the Council competent for the act shall document the positions and give reasons for the decision, applying the specialist parameters in accordance with the following allocation:

    a) the Biodiversity Council of Code 13 determines the parameters of biodiversity, animal welfare and protection of colonies;

    b) the Agroecological Council of Code 9 determines the parameters of agroecological use, crops, pollinator refuges and the requirement of the Basket;

    c) the Energy and Water Council of Code 8 determines the parameters of functional management of water, quality and maintenance of the network;

    d) the Safety Council of Code 14 determines the parameters of general safety;

    e) the Habitat and Territory Council determines the parameters of intended use, location, land take, Land Register and territorial constraints.

7. The allocation in paragraph 6 does not confer on a Council competence over aspects assigned to another and does not exempt from the obligation of coordination where a decision involves several parameters.

Art. 4 — Intended use and territorial map

1. Every Circle 1 shall adopt and keep up to date a territorial map containing at least:

    a) agricultural land of the Basket;

    b) agricultural land that is temporarily not fertile pursuant to Article 1, paragraphs 6 and 7;

    c) built-up land and land capable of regeneration;

    d) degraded land;

    e) ecological corridors;

    f) buffer zones;

    g) woodlands, wetlands and semi-natural areas;

    h) pollinator refuges, fields, seed banks and infrastructure provided for by Codes 8 and 9.

2. The intended use shall be resolved by the Assembly on a proposal from the Habitat and Territory Council, with:

a) the mandatory opinion of the Agroecological Council for agricultural areas;

b) the mandatory opinion of the Biodiversity Council for ecological corridors and buffer zones.

3. The opinions do not transfer the deliberative or technical competence, except for the express exceptions of this Code.

4. A change of intended use from fertile agricultural land to building land is permitted only if all the following conditions are jointly met:

a) the absence of alternatives based on reuse or regeneration is demonstrated and documented;

b) an equivalent territorial and ecological compensation is prepared in accordance with the Regeneration STV;

c) the compensation ensures, separately and cumulatively, the equivalence of the fertile function and that of the ecological function;

d) the binding opinion of the Agroecological Council has been obtained, which constitutes an express exception to the general rule of Article 3, paragraph 5;

e) the General Assembly approves the change by qualified majority.

5. The resolution shall indicate the location, extent, duration, compensations, persons responsible and means of verification.

Art. 5 — Land take and regeneration

1. Net take of fertile land is prohibited. Gross land take is permitted only if accompanied by a compensation plan approved pursuant to Article 4, paragraph 4, which guarantees a net balance equal to zero in the reference period.

2. The reversible occupation defined by Article 1, paragraph 2, letter e), does not constitute gross land take if the land is restored within the time limit provided for.

3. The Regeneration STV shall govern at least:

a) de-sealing techniques;

b) light remediation;

c) the increase of organic matter;

d) proximity reforestation;

e) the equivalence parameters for compensations;

f) the reference period and the means of verification.

4. An inventory of degraded land is established. Regeneration has priority for the areas necessary for the functions of the Basket of level 1–3.

5. Incompatible previous interventions existing on the date of entry into force shall be recorded in the map and indicated as such. They shall be subject to a compliance or regeneration plan with a definite final deadline pursuant to Article 10, paragraph 7. Inclusion in the compliance pathway does not automatically entail a territorial sanction.

Art. 6 — Ecological corridors and buffer zones

1. Every Circle 1 shall activate and maintain the ecological connection provided for by Article 2, paragraph 3.

2. The buffer zone for pollination has a minimum radius of five hundred metres from the pollinator refuge.

3. The Pollinators STV provided for by Article 6-bis of Code 9 may extend the radius on the basis of exposure, winds and the crops present. It may reduce it only where there are documented morphological characteristics, within a technical limit defined by the same STV and in any event not less than two hundred metres. The reduction requires a technical statement of reasons and the mandatory opinion of the Biodiversity Council.

4. Anyone who intends to carry out a permitted treatment in the zone shall notify the intervention to the Agroecological Council and to the Habitat and Territory Council at least forty-eight hours in advance, recording it in the node of the Federated Agroecological Network provided for by Article 7.

5. The notification shall indicate at least the location, product, dose, reason and duration. It constitutes an information obligation and not a prior authorisation. The silence of the Councils is equivalent neither to authorisation nor to refusal.

6. In the event of a plant health emergency resolved pursuant to Code 9, the forty-eight-hour time limit may be derogated from. The reasoned notification shall be recorded immediately or, if technically impossible, at the first available opportunity.

7. The Habitat and Territory Council shall verify the notification with the support of the Agroecological Council. Failure to notify entails the suspension of the treatment and the activation of the procedures provided for by Code 4.

8. For the fields of the Basket of level 1–2 a buffer zone for health is established, in which the polluting activities identified with the mandatory opinion of the Health Council of Code 6 are prohibited.

Art. 7 — Federated Land Register and georeferencing

1. The federated Land Register is established, comprising inventories and information on land, ecological corridors, buffer zones, pollinator refuges, agricultural water infrastructure, deposits and recoverable materials. Public data are aggregate and non-profiling, in conformity with Code 7, Article 2.2.

2. The Land Register provides for the following access levels:

   a) **public level:** an aggregate map with a level of detail that does not allow the identification of persons, single refuges or individual fields or sensitive infrastructure;

   b) **technical level:** precision georeferenced data, accessible exclusively to the Habitat and Territory, Agroecological and Biodiversity Councils and, for the inventory of recoverable materials, to the Production Council, for documented technical purposes of safety, planning or verification of the zones;

   c) **federated interoperability:** exchange of the necessary data between Circles with anonymisation and compliance with authorisations.

3. Accesses to the technical level shall be recorded with an indication of the purpose. Unauthorised export is prohibited. The access logs shall be retained for twelve months.

4. At every level the principle of the minimum detail necessary shall apply, so as to prevent individual identification and to protect the security of sensitive infrastructure.

5. Every Circle 1 shall activate a node of the Federated Agroecological Network in accordance with Code 7. The node shall feed the federated inventory and record the notifications provided for by Article 6, paragraph 4.

Art. 8 — Agricultural water, territory and dependencies

1. The competences relating to agricultural water are allocated as follows:

   a) Code 10 governs the location of territorial water infrastructure, including reservoirs, tanks, terracing, ditches and infiltration areas, and the related territorial constraints;

   b) Code 8 governs the functional management of water, the maintenance of the network, the functional priorities for drinking water and the quality aspects assigned to it;

   c) Code 9 governs the agricultural use of water and the determination of the requirement of the Basket.

2. The priorities in the event of water scarcity provided for by Article 10, paragraph 8, of Code 9 shall be implemented on the basis of the territorial map and by decision of the Energy and Water Council of Code 8, with the mandatory opinion of the Agroecological Council.

3. Code 10 does not decide the functional allocation of water.

4. The sealing of the strategic infiltration areas identified in the territorial map is prohibited.

5. **Territorial dependency** means a critical dependency on fertile land, ecological corridors, territorial accessibility, infrastructure or locations that are not substitutable, necessary for the maintenance of an essential function of level 1–3. Territorial dependencies shall be recorded in accordance with Code 15.

Art. 8-bis — Raw materials: recovery and inventory

1. The Habitat and Territory Council keeps in the Land Register, and updates every year, the inventory of recoverable materials present in the territory: disused buildings, vehicles and installations, landfills, waste from past extraction and materials deriving from the conversion provided for by Article 16.2 of the Constitution. The inventory is made available to the Production Council for the purposes of Articles 2 and 5 of C.1-Annex A.

2. Deposits are Commons entrusted to the custody of the Community in whose territory they are located. Custody gives no entitlement to rent.

3. The excavation of a landfill or of a deposit of waste from past extraction, in order to recover its materials, requires jointly, without prejudice to the matrix of Article 7 of Code 3:

   a) the mandatory opinions of the Habitat and Territory, Biodiversity, Energy and Water and Health Councils;

   b) a General Safety Sheet pursuant to Code 14;

   c) a restoration plan approved before the start, whose hours are counted together with those of the recovery, and a plan for the non-recoverable part in conformity with Article 14.5 of the Constitution;

   d) the resolution of the Assembly of the Community in whose territory the site is located; if the excavation may affect waters or ecological corridors common to several Communities, the General Assembly decides.

4. The excavation of paragraph 3 is prohibited in ecological sanctuaries and in areas that are candidates to become such, in wetlands and in strategic infiltration areas. It is not permitted before Codes 13 and 14 are activated. Excavation in conformity with paragraph 3 is use in conformity with a Sheet in force for the purposes of Article 6, paragraph 4, of Code 16. This Code and Code 13 remain in force.

5. This Article does not authorise new extraction or the extension of existing extraction. Article 14.2 of the Constitution remains in force.

Art. 9 — Prohibitions and guarantees

1. It is prohibited to:

   a) generate rent from common fertile land, from the subsoil, from mineral resources, from ecological corridors or from buffer zones;

   b) cause net take of fertile land without equivalent territorial and ecological compensation pursuant to Article 4, paragraph 4, and the Regeneration STV;

   c) interrupt the federated ecological connection provided for by Article 2, paragraph 3;

   d) conceal data that must be entered in the Land Register;

   e) carry out individual georeferencing for profiling purposes;

   f) transfer to parties external to the Confederation the control of the Land Register or of the map;

   g) carry out treatments in the buffer zone without the notification provided for by Article 6, paragraph 4.

2. Violation of paragraph 1 constitutes a substantial violation. Ascertainment, suspension, deactivation and procedural remedies are governed by Code 4.

3. The suspension or deactivation of a territorial function may not compromise the level 1–2 functions of

the Basket without the simultaneous activation of a Continuity Plan or of a technically compliant substitute function.

4. An appeal may be brought before the Guarantee Circle within fourteen days on grounds of procedural defect, manifest technical unreasonableness, discrimination or disproportion.

Art. 10 — Transitional provisions, links and precedence

1. This Code is coordinated with:

   a) Code 1, Articles 18 and 19 for the Basket and scarcity and Article 32 for the hierarchy of priorities;

   b) Code 2, for the STVs;

   c) Code 3, for resolutions;

   d) Code 4, for the Guarantee and appeals;

   e) Code 5, for L2 and L3 competences in matters of habitat;

   f) Code 6, for health and health security;

   g) Code 7, Article 2.2, for the Network and non-profiling;

   h) Code 8, for energy and water;

   i) C.1-Annex A, for production;

   j) Code 9, for agroecology;

   k) Code 12, for care;

   l) Code 13, for biodiversity;

   m) Code 14, for safety;

   n) Code 15, for the Dependency Register.

2. Within six months of entry into force, every Circle 1 shall carry out a census of:

   a) the land;

   b) the existing ecological corridors;

   c) the pollinator refuges and the managed bee colonies, with provisional georeferencing;

   d) degraded land and land that is temporarily not fertile;

   e) incompatible previous interventions.

A provisional minimum Land Register shall also be activated.

3. Within twelve months, every Circle 1 shall activate:

   a) the Habitat and Territory Council;

   b) the territorial map and the minimum Land Register;

   c) the minimum ecological connection;

   d) the minimum buffer zones;

   e) the node of the Federated Agroecological Network.

4. In the event of a documented overlap of the transitional burdens relating to Codes 8, 9 and 10, the Assembly may grant a reasoned extension not exceeding six months, accompanied by a binding plan and by measures that guarantee the continuity of the Basket.

5. Once the time limit for the new mandatory infrastructure has expired without its having been activated, the non-compliance shall be dealt with in accordance with Code 4 and entails the preparation of a binding plan.

6. Within ninety days of entry into force, existing activities, infrastructure, intended uses and other territorial arrangements that violate Article 9 shall be brought into conformity or the deactivation procedure shall be initiated. The procedure comprises:

   a) a conformity check by the Habitat and Territory Council;

b) documented ascertainment of the technical impossibility of compliance, with the opinion of the Council competent for the subject matter;

c) initiation of the deactivation procedure by the Assembly, on a proposal from the Habitat and Territory Council;

d) a Substitution Plan with a definite final deadline and a guarantee of continuity of the Basket in accordance with Code 4.

7. For the incompatible previous interventions recorded pursuant to Article 5, paragraph 5, a compliance or regeneration plan with a final deadline not exceeding twenty-four months shall be adopted within twelve months. Interruptions of ecological corridors and the sealing of infiltration areas have priority.

8. **Inter-Code precedence clause.** In the event of overlap, each Code prevails exclusively as regards the parameter within its own competence:

a) Code 10 as regards intended use, location, gross and net land take, the Land Register, georeferencing and territorial constraints;

b) Code 9 as regards agroecological production and the agricultural use of territorial infrastructure;

c) Code 8 as regards the functional management of water;

d) Code 13 as regards the parameters of biodiversity and animal welfare;

e) Code 14 as regards general safety.

The clause does not transfer competences and does not exclude mandatory coordination between the Councils involved.